

Legal Requirements of a Care and Support/Support Plan Review and Tools



AMENDMENT

In December 2024, this chapter was amended to reflect feedback received following a full tri.x legal review of the Care Act 2014 Resource section, Meeting Needs.

[December 16, 2024](#)

1. Using this Procedure

This procedure should be used by anyone carrying out the light touch or full review of a Care and Support or Support Plan.

2. The Purpose of a Care and Support/Support Plan Review

The Care and Support/Support Plan review is *the* primary monitoring function of the Care Act. It is vital that reviews are carried out to ensure that the duty to meet eligible needs is being met on an on-going and continuing basis.

The Local Authority has a statutory duty under section 27 of the Care Act to:

- a. Keep Care and Support/Support Plans under general review (using the timescales set out in the Act); and
- b. Review the Care and Support/Support Plan upon any reasonable request to do so.

Under the Care Act the purpose of a Care and Support/Support Plan review is to:

- a. Reflect on what is working and not working about the Care and Support/Support Plan;
- b. Consider what may need to change about the Care and Support/Support Plan;
- c. Make sure the plan remains up-to-date;
- d. Make sure the plan remains relevant to the person's/carer's needs and identify any need for reassessment;
- e. Make sure the plan remains relevant to the person's/carer's aspirations; and
- f. Mitigate the risk of people entering a crisis or safeguarding situation.

Need to know

The purpose of a review is **not** to reassess a person's/carer's needs. If the review confirms that a change in need has occurred a reassessment of need will be required following the review. This should be proportionate and make full use of the information gathered at review.

3. Legal Requirements of Review

3.1 The responsibility of review

Under Section 27 of the Care Act 2014, the Local Authority **must** keep Care and Support/Support Plans under periodic review. This means they must have a system or process in place to ensure that reviews are carried out and monitored in a manner appropriate to the needs and circumstances of the person/carer whose plan it is.

The Local Authority is responsible for the review function, even if a decision is made to delegate some or all of that function to another person or organisation.

3.2 Timing of a Review

The review should be carried out in a timely way, based on the needs and circumstances of the person/carer. Because every person/carer is different, the Care Act does not specify the frequency in which a Care and Support/Support Plan review must take place. That said, the statutory guidance does expect the Local Authority to endeavour to carry out a Care and Support/Support Plan review as follows:

- a. A review of a new service or Care and Support/Support Plan should be carried out within 6-8 weeks of the service/change commencing;
- b. A review of an on-going stable Care and Support/Support Plan should take place no less than 12 months after the date of the 6-8 week review, and then no less than once every 12 months after that;
- c. Where the person's/carer's needs or circumstances are likely to change reviews should be arranged as required to monitor the situation and respond to changes in a timely way (thus keeping the plan under review).

3.3 Combining a Direct Payment Review with a Care and Support/Support Plan Review

Wherever possible there is an expectation under the Care Act that a Care and Support/Support Plan review and a Direct Payment review are carried out at the same time, preferably as a joint process. Doing so will prevent unnecessary duplication for both the person/carer and the Local Authority.

See: [Reviewing a Direct Payment](#).

3.4 Who can carry out a review

Although not strictly required, the person carrying out the review should meet the requirements of a person who carries out an assessment. This is so that the person has the necessary expertise to recognise when a reassessment may be required. In summary, these are that they should be:

- a. Competent to carry out the function; and

- b. Possess the skills, knowledge and competence required based on the person's/carer's needs and circumstances (for example being skilled to adapt communication appropriately for someone with a learning disability, or to work confidently alongside a multidisciplinary team).

There are specific requirements when the person with Care and Support needs has a diagnosis of Autism or is Deafblind. These are the same requirements that apply when carrying out an assessment. For further information, see: [Who Should Carry Out the Assessment?](#).

3.5 Who must be involved

Whenever you carry out a review you **must** involve:

- a. The person with Care and Support needs (or the carer with Support needs);
- b. Anyone else that the person has asked you to involve;
- c. In the case of a Care and Support Plan review, any carer that the person has;
- d. The person's representative (when they lack capacity or have substantial difficulty);
- e. Where the person lacks capacity, anyone else that the Local Authority deems it would be in the person's best interests to involve.

3.6 What the review must establish

There are particular broad elements that you must establish when carrying out a Care and Support/Support Plan review:

- a. Have the person's/carer's circumstances and/or needs changed?
- b. What is working in the plan, what is not working, and what might need to change?
- c. Have the outcomes identified in the plan been achieved or not?
- d. Does the person/carer have new outcomes they want to meet?
- e. Could improvements be made to achieve better outcomes?

- f. Is the person's/carer's personal budget enabling them to meet their needs and the outcomes identified in their plan?
- g. Is the current method of managing the personal budget still the best one for what they want to achieve (for example, should a Direct Payment be considered)?
- h. Is the personal budget still meeting the sufficiency test?
- i. Are there any changes in the person's/carer's informal and community support networks which might impact negatively or positively on the plan?
- j. Have there been any changes to the person's/carer's needs or circumstances which might mean they are at risk of abuse or neglect?
- k. Is the person, carer, independent advocate or other person involved satisfied with the plan?

4. Tools and Practice Guidance for Review

4.1 Legal Requirements and Statutory Guidance

The Care Act does not require that a specific tool (or any tool at all) is used to support or shape the review process, but it does acknowledge that a good tool can be helpful. However, any tool should:

- a. Facilitate and ensure the person's/carer's involvement;
- b. Support the information gathering process;
- c. Be flexible and adaptable; and
- d. Be appropriate and proportionate to the needs being met by the Care and Support/Support Plan.

See below for details of the tools that are available for you to use as required.

4.2 Considerations when using tools

The process of review involves having a skilled conversation about:

- a. What is working/not working;
- b. What may have changed about the person's/carer's situation, need or outcomes; and
- c. What may need to change in the Care and Support/Support Plan as a result.

Depending on the nature of the review and the presenting issue there may be a need to explore in more detail:

- a. Changes in Needs; and
- b. Risk.

You should consult with the person/carer and/or others when arranging the review to understand the specific communication needs that the person/carer has so that any review tool you use will ensure their involvement in the conversation.

If you do not feel that the review tools available to you will be appropriate you should speak to your manager about how they can be adapted.

Sometimes you may need to supplement the available tools with more bespoke tools to support the specific communication needs of the person/carer. For example, you may need to use photographs or pictures. This is entirely appropriate under the Care Act as it will ensure the involvement of the person/carer and will also support you to meet the duty to provide information in an accessible way.

Need to know

Remember: see the [tri.x Resources](#) to access additional practice guidance that can support the processes of establishing needs, Care and Support Planning and review when a person has specific or complex needs.

4.3 Available tools

Across the country and even within each Local Authority there are a range of models and frameworks used to support or shape the process of review. These are known as tools.

First and foremost you should have regard for any available practice guidance or good practice examples provided by the Local Authority.

The following are other tools available to you that may enhance any review conversations and accessibility.

tri.x have developed a range of person centred tools that can:

- a. Support a person/carer to think about what matters most to them, now and in the future;
- b. Support a person/carer or family member to think about Wellbeing;
- c. Support a person/carer or family member to think about needs and what a good day/bad day looks like; and
- d. Support a person/carer or family member to think about what is working/not working about a Care and Support/Support Plan and any services or support they receive.

See: [Resources for Person Centred and Strength Based Conversations](#).

Think Local Act Personal have also produced an online tool to support everything from preparing a person for an assessment, to having a skilled conversation and developing a Care and Support Plan through to review. See [Personalised Care & Support Planning](#).

5. Light Touch Review

The Care Act expects a light touch review to be carried out whenever this is deemed appropriate.

The primary focus of a 'light touch' review is to gather enough information to be satisfied that the Care and Support/Support Plan is working effectively as intended with no issues or adjustments needed. During a light touch review there is only a requirement to 'touch' upon needs, Wellbeing and outcomes, unless doing so identifies the need for a more explorative conversation.

A light touch review is less intrusive for the person/carer and avoids unnecessary duplication or repetition of information recently provided. The recording of a light touch review should also be more proportionate.

A light touch review is normally appropriate and proportionate whenever:

- a. There are no known changes in need or circumstances; and
- b. There are no changes required to a Care and Support/Support Plan (or minimal changes to how existing Care and Support/Support is provided only); and

- c. There are no changes required to the personal budget.

A light touch review should be specifically considered in the following circumstances:

- a. At the 6-8 week review; and
- b. When there is/has been on-going monitoring of the person's/carer's needs or circumstance.

6. Responding to a Review Request

6.1 Who can request a review

Anybody can make a request for a Care and Support/Support Plan to be reviewed and the Local Authority **must** consider all requests made. There is a duty to carry out a review whenever a request is deemed 'reasonable'.

6.2 Deciding whether a review request is 'reasonable'

Any request for a review that is made at a time reflective of that recorded in the Care and Support/Support Plan is usually reasonable. If these are the circumstances of the request a review should be arranged and carried out at the earliest opportunity.

Deciding whether a review request made at any other time is 'reasonable' involves considering a number of factors before making a professional judgement. These include:

- a. Is the information on which the request is being made accurate?
- b. If a review has been carried out in the last 6-8 weeks, has there been a change in need or circumstance?
- c. Is the Care and Support/Support Plan still working as intended?
- d. Are the eligible needs identified at assessment being met?

6.3 The need to consult with the person/carer

The person/carer whose Plan it is must be consulted before any decision is made about the need to review, and their views must be regarded.

If a person with Care and Support needs lacks capacity to be consulted you should consult with an appropriate person, where possible this should be somebody with the legal authority to represent the person and make decisions relating to Care and Support.

6.4 When a review is deemed 'reasonable'

If the review is deemed reasonable you should make arrangements to carry it out at the earliest opportunity.

6.5 When a review is deemed 'unreasonable'

There is no duty to carry out a review if the request is deemed 'unreasonable'.

If the decision is made not to carry out a review you should inform the person/carer whose Plan it is, and the person who made the request (if this was a different person) as soon as possible.

You should explain:

- a. That the review request has been declined;
- b. The evidence upon which the decision was made;
- c. When a planned review will be carried out;
- d. What the person/carer should do if their needs or circumstances change before then; and
- e. The person's/carer's right to complain about the decision.

You must also provide information and advice about:

- a. Adult Care and Support in general as required;
- b. Ways that needs could be prevented, reduced or delayed.

In all cases where communication has been provided by telephone a follow up letter confirming the conversation and outcome should be sent to the person/carer as a formal record.

You should also make a proportionate record of the decision, the person's/carer's views and the information that has been given to them, specifically any timescales that have been agreed.

6.6 Monitoring the situation

A proportionate response to a review request may be to agree monitoring arrangements.

There is a duty under the Care Act to carry out proportionate monitoring whenever there is a risk that a person's/carer's needs may change or their situation may become unstable.

The arrangements to monitor must be:

- a. Proportionate and appropriate to the person's/carer's situation and risk;
- b. Agreed with the person/carer and, in the case of a person with Care and Support needs any carer; and
- c. Agreed from a strengths based approach to promote resilience of the person/carer and their informal networks of support.

If you are unclear about the need to monitor you should seek advice from your line manager.

Monitoring arrangements must be clearly recorded. Where you are making arrangements for someone else to monitor the situation (rather than monitoring it yourself) you must make sure that you have recorded this in a way that will ensure monitoring activity takes place at the agreed time.

Any monitoring activity carried out should be clearly recorded and you should use supervision effectively to discuss and agree the need for continued

monitoring.

Last Updated: December 16, 2024

v51

Select Language



Powered by  **Translate**

You can translate the content of this page by selecting a language in the select box.

Copyright © tri.x